

		Counsel is ordered to update the proposed order and judgment at ¶ 10 to incorporate these tentative rulings. Class Counsel must file supplemental papers addressing the Court's concerns no later than nine (9) court days prior to the continued hearing date. Counsel must also provide red-lined versions of all revised papers and an explanation of how the pending issues were resolved with precise citation to any revisions. A supplemental declaration or brief that simply asserts the issues have been resolved is insufficient and will result in a further continuance. Plaintiffs are ordered to give notice of this Court's ruling within five (5) court days, and file proof of service.
116	Gonzalez vs. Gold Coast Bakeries LLC. 2021- 01184280	Motion for Preliminary Approval of Class/PAGA Settlement The court has reviewed and considered the papers filed in support of plaintiff's motion for preliminary approval of a \$250,000 class action and PAGA settlement. The court has the following questions and comments: 1. Were the supplemental papers served on the LWDA? Plaintiff must file with the court a proof of service identifying the specific documents served on the LWDA, when plaintiff served the documents, and how service was effected. <u>As to the settlement:</u> 2. The court's 04-10-2025 minute order stated the "parties must provide an estimate of the total number of workweeks in the Covered Period." ROA 119. The number provided by defendant at mediation, even if the date of mediation was identified, which it is not, does not resolve this issue. 3. The court's 04-10-2025 minute order stated the "deadline for submission of requests for exclusion, objections, and disputes should be 60 days after the mailing of the Class Notice." ROA 119. In addition to the changes already made, the definition of "Document Receipt Deadline" remains 30 days, which is thus inconsistent with those changes. Settlement § I(k). The definition should reflect 60 days.

4. Insert a comma between "Settlement Agreement" and "Class Notice." Settlement § VII(22)(n). The same change should be made in the notice (§ VIII).

As to the proposed order:

5. The ROA number of the settlement must be corrected. The notice (and Spanish translation) should be identified and attached as an exhibit to the proposed order.
6. The final approval hearing should be proposed for a Thursday at 2:00 p.m. in Department CX102. The proposed order (§ 8(f)) should be corrected.

Other issues:

7. The court's 04-10-2025 minute order identified several "other" issues for the parties to address. ROA 119. None of the "other issues" identified as nos. 18-21 have been addressed, i.e., (18) Counsel must provide information regarding the average Individual Settlement Payment and Individual PAGA Payment; (19) Counsel must provide estimate of number of PAGA Group Members; (20) Counsel must attest as to the fee-splitting arrangement with co-counsel and how any award of attorneys' fees is to be allocated; (21) Counsel must attest as to whether there are any concurrent pending cases against Defendant that may impact the settlement.).

The hearing on plaintiff's motion for preliminary approval of a class action and PAGA settlement is **continued to August 6, 2026, at 2:00 p.m. in Department CX102** to permit the parties to address and respond to the above issues. A supplemental brief shall be filed at least 16 court days before the hearing and shall address as necessary each of the above points. The parties shall also provide redlined copies of any revised documents.

Plaintiff is ordered to provide notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service.

117	Navarro Arevalo vs. Gold Coast Baking Company, Inc. 2022-01243370	Status Conference Continued to August 6, 2026, at 2:00 p.m. in Department CX102 CMC statement to be filed 10 days in advance. Parties are to address effect of settlement re related Gonzales matter.
118	Lopez vs. Atrium Hospitality LP 2022-01245971	Motion for Final Approval Plaintiff's motion for final approval is CONTINUED to July 9, 2026 at 2:00 p.m. in Department CX102 to permit the parties to respond to the following items of concern. Any supplemental briefing shall be filed 16 court days prior to the hearing. Redlines showing all changes, deletions, and additions must also be submitted. In addition, Plaintiff must provide proof of service of any revised supporting papers on the LWDA. 1. What is the amount of the lowest estimated individual PAGA award? 2. What are the amounts of plaintiff's individual class and PAGA awards? 3. All cost items for mailings, postage, copying, and faxes should be removed as the court does not reimburse such costs. ROA 161 Ex. D. Furthermore, the court requires submission of supporting documentation for the mediation fee. Additionally, counsel should explain to what the numerous charges for "Janney & Janney" pertain. Id. <u>As to the Proposed Order:</u> 4. The title of the document and the footer should reflect "Proposed Order Granting Final Class Action and PAGA Settlement Approval and Judgment." ROA 164. 5. Identify the operative settlement by ROA number. ROA 164 ¶ 1. 6. Include the releases and their operative dates. ROA 164 ¶¶ 14-15.